

Neutral Citation: [CASE NUMBER]

Claimant: Mr. C

Respondent: Employer Ltd

GROUND OF CLAIM (ANONYMISED)

1. Background

1.1 The Claimant was employed by the Respondent as an [JOB TITLE] on a fixed-term contract that commenced in late [YEAR]. His employment was subject to a probationary period.

1.2 Prior to his interview, the Claimant disclosed that he is on the autism spectrum via email and explicitly requested reasonable adjustments, including:

- Asking closed rather than open-ended questions.
- Avoiding multi-layered or abstract questions.
- Allowing additional processing time for responses.
- Providing clear and explicit expectations and instructions.

1.3 These requests were consistent with established guidance from recognised autism employment resources, which acknowledge that autistic individuals experience varying communication challenges.

1.4 The Respondent acknowledged and implemented these adjustments during the interview, confirming their awareness of the Claimant's condition. However, these adjustments were inconsistently applied throughout his employment, particularly during performance assessments, the probation review, and his dismissal meeting.

2. Direct Disability Discrimination (Section 13 EqA 2010)

2.1 Under Section 13 of the Equality Act 2010, direct discrimination occurs when an employer treats a disabled person less favourably than a non-disabled person because of their disability.

2.2 The probation meeting notes confirm that communication difficulties were repeatedly cited, including statements about communication being very difficult, needing to take more responsibility for communication, and that communication was a significant focus of the discussion. These communication challenges are an inherent characteristic of autism, meaning that the dismissal was directly linked to the Claimant's disability.

2.3 The employer did not dismiss the Claimant due to a specific work-related failure, but rather because his communication style, processing time, and social interaction—traits of autism—did not align with their expectations. The probation meeting notes confirm that communication was the dominant issue in the dismissal, reinforcing that the Claimant's autism, rather than his actual work performance, was the primary reason for termination. This constitutes direct discrimination under Section 13 EqA 2010, as the Claimant was treated less favourably due to his disability.

2.4 Unlike other forms of discrimination, direct discrimination cannot be justified under the law. Since the dismissal was explicitly based on autism-related communication traits, it is unlawful.

3. Discrimination Arising from Disability (Section 15 EqA 2010) — Alternative Claim

3.1 If the Tribunal does not find direct discrimination, the Claimant alternatively claims discrimination arising from disability under Section 15 EqA 2010. This applies when an employer treats a disabled person unfavourably because of something arising in consequence of their disability, unless it can be objectively justified.

3.2 The Respondent cited communication issues and lack of initiative as justification for dismissal. These issues were a direct consequence of the Claimant's autism, meaning that the decision was discrimination arising from disability.

3.3 Under Section 136 EqA 2010, the burden of proof shifts to the employer to prove that the dismissal was not connected to the Claimant's disability. Given that communication issues were the primary reason for dismissal, the employer must justify why reasonable adjustments were not made before terminating the contract.

4. Failure to Make Reasonable Adjustments (Sections 20 & 21 EqA 2010)

4.1 Under Section 20 of the Equality Act 2010, the Respondent had a legal duty to make reasonable adjustments once aware of the Claimant's disability. The Respondent's own Grounds of Resistance implicitly acknowledges the Claimant's disability by stating that adjustments were considered.

4.2 Despite this duty, the Respondent failed to consistently apply the reasonable adjustments necessary to accommodate the Claimant's autism, including:

- Not providing clear and structured communication despite known difficulty with processing ambiguous instructions.
- Expecting participation in group chats, which was contrary to the adjustments requested for clear, direct communication.
- Not allowing sufficient processing time during performance meetings, which led to misunderstandings that were unfairly perceived as performance deficiencies.

4.3 Under Section 21 EqA 2010, failure to comply with the duty to make adjustments constitutes unlawful discrimination.

4.4 Employers have a proactive legal duty to identify, explore, and implement reasonable adjustments once aware of a disability.

5. Procedural Unfairness

5.1 The dismissal was procedurally unfair because:

- It was abrupt and premature, denying any opportunity to explore internal redeployment within the organisation, which suggests the dismissal was predetermined.
- No capability review or formal assessment of the disability's impact on performance was conducted.
- The Claimant was not given a genuine opportunity to improve with reasonable adjustments in place.
- No adjustments were made during the dismissal meeting.
- There was no attempt to find alternative employment within the organisation.
- The Claimant was not permitted to serve his notice period, despite this being standard practice.
- The appeal process was artificial, predetermined, and lacked due process. It denied the impact of autism on performance while the evidence was very clear. The Claimant's concerns were not genuinely considered, and the outcome was decided in advance.

5.2 The fact that the dismissal was discriminatory means it was automatically unfair.

5.3 The Respondent must demonstrate that dismissal was proportionate and necessary to achieve a legitimate aim.

6. Claims and Remedies Sought

Given the direct discrimination, discrimination arising from disability, failure to make reasonable adjustments, and procedural unfairness, the Claimant seeks the following remedies:

- Re-engagement in a suitable role within the Respondent's organisation, with appropriate reasonable adjustments implemented.
- Compensation for loss of earnings, including the premature termination of the fixed-term contract.

- Compensation for injury to feelings within the middle to upper Vento band, reflecting the emotional distress and professional harm suffered.
- Compensation for future loss of earnings, as the dismissal has significantly impacted the ability to secure alternative employment.
- Any other losses associated with the termination of employment.

7. Conclusion

The Respondent's actions amount to:

- Direct disability discrimination (Section 13 EqA 2010).
- Discrimination arising from disability (Section 15 EqA 2010).
- Failure to make reasonable adjustments (Sections 20 & 21 EqA 2010).
- Procedural unfairness.

Additionally, the Respondent holds access to all internal communications, meeting notes, and HR discussions related to the dismissal, while the Claimant has been excluded from these discussions. This creates an information asymmetry that places the Claimant at a disadvantage in proving internal decision-making. The Claimant requests extensive document disclosure to ensure transparency regarding the handling of this case.

The Claimant reserves the right to amend and expand the claim further following document disclosure.